Oklahoma AI Guidance: Data and Student Privacy Passages

Excerpted verbatim from *Guidance and Considerations for Using Artificial Intelligence in Oklahoma K-12 Schools, Version 3.0 (Oklahoma State Department of Education, July 2026)*. Page numbers refer to the PDF pages of the source file. Ellipses (…) mark omitted text. Passages that only repeat the same requirement elsewhere in the document (for example, the Roles and Responsibilities references to FERPA/COPPA) are quoted once in short form.

Executive Summary: Key Principles (excerpt)

Source: page 3

Safety First Robust protections for student data and well-being.

Legal Compliance Full alignment with (Oklahoma Responsible Technology in Schools Act), FERPA, COPPA, IDEA, and Oklahoma laws.

Definitions: Vendor / AI Tool Inventory (excerpt)

Source: page 6

The district's public maintained record of all AI tools in use, including purpose, type of data collected, and the Oklahoma Responsible Technology in Schools Act compliance status.

District Written AI Policy Requirement (excerpt)

Source: page 8

Every Oklahoma school district must adopt a written AI policy addressing:

- data protection and data minimization
- incident handling procedures.

District Policy & Compliance Checklist (excerpt)

Source: page 10

The written district AI policy must address:

- Data protection and minimization requirements
- Procedure for handling AI tool incidents or violations
- Procurement and vendor vetting standards

3. Safety, Security, and Regulatory Compliance

Source: page 10 (table)

Safety, security, and compliance require robust frameworks to protect student data, ensure appropriate content filtering, and maintain regulatory adherence.

- [graphic] **Low Risk (Green)** — AI tools that do not require personally identifiable information (PII). Ensure Responsible Use: Implement data anonymization and security measures. Verify educator-directed use per 70 O.S. § 11-120.

- [graphic] **Medium Risk (Yellow)** — All tools collecting personal data like learning analytics, engagement metrics, or assignment feedback. Use With Caution: Enhanced security protocols and transparent data practices. Confirm the tool cannot autonomously issue grades or discipline.
- [graphic] **High Risk (Red)** — All tools collecting sensitive information like student demographics or PII. Use With Extreme Caution: Robust security measures and strict adherence to user consent. Requires administrative approval. Confirm full 70 O.S. § 11-120 and FERPA compliance before use.

4. Disclosure and Transparency Obligations (excerpt)

Source: page 11

Districts must notify parents and guardians at least annually of all student-facing AI tools in use. This notification must include:

- Names and purposes of AI tools used with students.
- Type of data collected by the AI tools, how it is used, and how it is protected.
- Clear instructions on how parents can exercise their opt-out rights without academic penalty to the student.

AI Tool Inventory (Annual Disclosure Required)

Districts must maintain and publicly disclose an ongoing inventory of all AI tools in use.

[graphic] Tool Name | Purpose | Student-facing? | Data Collected | Vendor Privacy Policy | Review Data

[graphic] Example tool | Differentiated drafting | Yes | Learning analytics | [Link} | 07/01/2026

Relevant Regulations: FERPA and COPPA

Source: page 12

Family Educational Rights and Privacy Act (FERPA)

- AI systems must protect privacy of student education records
- Comply with parental consent requirements
- Ensure AI vendors have appropriate data protection agreements

Children's Online Privacy Protection Act (COPPA)

- AI technologies collecting data on children under 13 must adhere to COPPA regulations
- Require parental consent and data minimization practices

5. Procurement and Vendor Compliance (excerpt)

Source: page 13

The procurement process must ensure absolute 70 O.S. § 11-120 compliance alongside prior state data statutes.

Procurement Checklist

- Full compliance with FERPA, COPPA, and the Oklahoma Student Data Act.

- Explicit written vendor confirmation that student data is not utilized to train public or proprietary AI models without explicit, non-standard consent.

5. Procurement and Vendor Compliance: Vendor Assessment Questions (excerpt)

Source: page 14

- Does the tool maintain a continuous, unalterable audit trail logging AI-generated outputs versus human-confirmed student outcomes?

AI Literacy Components: Data Literacy (excerpt)

Source: page 16

- **Data Literacy:** Understanding how data is collected, analyzed, and used by AI

4) Data & Information Privacy

Source: page 19

- **Overview:** Generative AI tools introduce severe data privacy risks, as consumer-facing prompts are often retained by vendors to train future models.
- **Oklahoma Risks & Examples:** Entering personally identifiable information (PII) into unvetted tools violates student privacy, failing to account for tribal data sovereignty in communities serving tribal citizens.
- **Legal Anchors:** FERPA, COPPA, and the Oklahoma Student Data Accessibility, Transparency and Accountability Act.
- **Recommended Practices:** Strict prohibition of PII entry into consumer-tier AI; mandate vendor compliance with zero-data-retention terms; perform routine, documented data security audits.

8) Cybersecurity & Agentic AI Risks

Source: page 21

- **Overview:** Generative AI amplifies the sophistication of phishing, social engineering, and voice cloning attacks, while agentic AI (systems that act on behalf of a user) increases the system attack surface.
- **Oklahoma Risks & Examples:** Connecting over-permissioned AI agents to student information systems (SIS) or shared network drives can lead to data exfiltration or unauthorized system modifications.
- **Legal Anchors:** Oklahoma Student Data Act and state cybersecurity compliance frameworks.
- **Recommended Practices:** Train staff on AI-enhanced phishing detection, isolate AI agents with read-only permissions, require strict human confirmation before an AI agent performs any system action, and update district incident response plans to include AI-specific attack vectors.

Prohibited Misuse of AI Tools (excerpt)

Source: page 23

School policies must enforce strict, clear prohibitions regarding the following behaviors:

- Using AI to create, alter, or distribute deepfakes or non-consensual sexual imagery.
- Any automated interaction designed to violate the safety, privacy, or dignity of others.

12. Roles and Responsibilities: District Technology Team (excerpt)

Source: page 25

- Ensure security and privacy standards (FERPA, COPPA, Oklahoma Student Data Act)

Roles and Responsibilities: Principals and Parents (excerpt)

Source: page 26

- Communicate AI tool inventory and opt-out process to families annually
- Receive annual notification of AI tools used in their child's school (70 O.S. § 11-120 right)